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Case Number: 24STCV34245 Hearing Date: July 31, 2026 Dept: 509

Anthony Wheaton v. Warner Music Group, et al.

DEMURRER TO SECOND AMENDED COMPLAINT

MOVING PARTY: Defendants Warner Music Group Corp. and Atlantic Recording Corporation

RESPONDING PARTY(S): Plaitniff Anthony Wheaton

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Anthony Wheaton (Plaintiff) is a musician. Plaintiff alleges that he entered into an agreement with defendants Warner Music Group Corp. and Atlantic Recording Corporation (collectively, Defendants). Plaintiff alleges that Defendants have not paid money owed under the agreement. Plaintiff alleges causes of action for: (1) breach of contract; (2) breach of good faith and fair dealing; and (3) unjust enrichment.

Defendants now demur to the entirety of the second amended complaint (SAC). Plaintiff did not file a timely opposition.

On July 7, 2026, the matter came to hearing. Plaintiff’s counsel indicated that he was not aware of a demurrer hearing. Plaintiff was allowed to file and serve an opposition by 4:00 PM on 07/21/2026. Thereafter, by 4:00 PM on 07/27/2026, Defendant was allowed to file a reply.

On July 22, 2026, Plaintiff filed a late opposition. Defendants filed a reply.

The Court now considers the entire record including any late filed pleadings.

TENTATIVE RULING (Revised):

Defendants’ demurrer to the first, second and third cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

This case is DISMISSED WITH PREJUDICE, per Code of¿Civil¿Procedure, section¿581(f)(1).¿ Defendants are to file a proposed Judgment consistent with this ruling.

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Defendants are¿ordered to give notice, unless waived.¿

DISCUSSION:

Demurrer to Second Amended Complaint

I. Meet and Confer

The Declaration of attorney Alexandra L. Anfuso reflects that the meet and confer requirement was satisfied.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

Defendants demur to the entirety of the SAC on grounds that each cause of action fails to state facts sufficient to constitute a cause of action.

1. First Cause of Action (Breach of Contract)

Defendants argue that the first cause of action for breach of contract fails as Plaintiff does sufficiently allege facts to establish the existence of a contract and the action is barred by the statute of limitations.

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Here, Plaintiff alleges there was both an implied and an oral contract between the parties. (SAC ¶¶35, 40.) Plaintiff “entered in to a production label Agreement (“Agreement”) whereby SIR JINX asserts that he wrote and produced all songs for the album “Make Way for The Motherload” (“Make Way Album”) for WMAR Defendants and in exchange Defendants would pay

SIR JINX for said album as well as royalties for said album." (SAC ¶41.) Plaintiff alleges he "is entitled to payment and royalties for his produced songs." (SAC ¶45.) Plaintiff "performed by providing not less than twenty-eight (28) songs to" Defendants. (SAC ¶46.) Plaintiff "has incurred damages due to the Defendants' failure to pay royalties as well as the failure to provide the accounting for the song as listed herein." (SAC ¶52.)

A. Plaintiff Fails to Sufficiently Allege a Breach of Contract

First, Plaintiff has failed to allege whether the contract was implied or oral. A demurrer may be sustained "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (Code of Civ. Pro. §430.10, subd. (g).) Instead, Plaintiff alleges there was both an implied and an oral contract between the parties. (SAC ¶¶35, 40.) The Court cannot ascertain whether there are multiple agreements or if Plaintiff arguing an "express contract from which certain terms may be implied." (Holcomb v. Wells Fargo Bank, N.A. (2007) 155 Cal.App.4th 490, 501.) If the latter, there are no factual allegations as to the existence of any implied terms. Given the seemingly contradictory nature of Plaintiff's allegations, a demurrer based on Section 430.10(g) is proper.

Further, Plaintiff fails to sufficiently allege the existence of a contract. "Under California law the basic requirements for an enforceable contract are (1) parties capable of contracting, (2) the consent of those parties, (3) a lawful object, and (4) adequate consideration." (Santana v. Studebaker Health Care Center, LLC (2026) 120 Cal.App.5th 1, 11.) "California law is clear that there is no contract until there has been a meeting of the minds on all material points." (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 357–358.) "Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable. [Citations.] 'Although the terms of a contract need not be stated in the minutest detail, it ... must evidence a meeting of the minds upon the essential features of the agreement, and ... the scope of the duty and limits of acceptable performance [must be] sufficiently defined to provide a rational basis for the assessment of damages.'[Citation] '[F]ailure to reach a meeting of the minds on all material points prevents the formation of a contract even though the parties have orally agreed upon some of the terms, or have taken some action related to the contract.'" (Cheema v. L.S. Trucking, Inc. (2019) 39 Cal.App.5th 1142, 1149.) Here, Plaintiff's SAC fails to factually allege that the parties agreed to anything at all. There are no facts such as when the contract was executed, with whom, the price, time of payment, duration, etc. There are no facts giving rise to even the most basic terms of the contract. Instead, it is alleged conclusively that "he wrote and produced all songs for the album "Make Way for The Motherload" ("Make Way Album") for WMAR Defendants and in exchange Defendants would pay SIR JINX for said album as well as royalties for said album." (SAC ¶41; see Serrano v. Priest, supra, 5 Cal.App.3d at p. 591 ["We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law."]) There is no information detailing what amount he was owed, when the payment was due, or even when and how any contract was formed. There are simply no facts demonstrating the parties entered into any agreement, oral or otherwise.

Accordingly, Defendant's demurrer to the first cause of action is SUSTAINED.

B. Plaintiff Cannot Avoid Adverse Rulings by Pleading Vaguely

Plaintiff's failure to allege sufficient facts appears tactical.

First, there is a potentially fatal issue with respect to the statute of limitations. Here the cause of action is subject to a two-year limitations period. (Code Civ. Proc. § 339.) However, Plaintiff alleges, "in and around September 2019, SIR JINX informed Defendants there was an issue regarding the failure to pay royalties pursuant to ongoing and current production label Agreements the parties agreed upon regarding payments and royalties." (SAC ¶21.) This would indicate that the statute of limitations ran in 2021 while this action was not filed until 2024 rendering this action untimely.

To avoid the statute of limitations, Plaintiff alleges "there has been and still occurs which causes the statute of limitations ongoing due to the schemeful use of Plaintiff's music without compensation." (SAC ¶12.) Even assuming this was sufficient to demonstrate Defendants continuously breached the alleged contract, therein lies a different issue. The statute of frauds declares several types of agreements "invalid" unless "they, or some note or memorandum thereof, are in writing and subscribed by the party to be charged or by the party's agent." (Civ. Code § 1624, subd. (a).) The statute applies to an agreement that, by its terms, is not to be performed within a year from the making thereof. (Id. subd. (a)(1).) By alleging an agreement not in writing, Plaintiff cannot also allege that Defendants were required by the same agreement to make payments beyond one-year from the formation of the contract without potentially invalidating the contract on which he relies.

In the end, it appears that Plaintiff is keeping his pleadings ambiguous enough to avoid running afoul of either issue. (Cf. American Advertising & Sales Co. v. Mid-Western Transport (1984) 152 Cal.App.3d 875, 879 [“Courts are understandably suspicious of a party’s belated claim of mistaken admission of facts where the party has had unrestricted access to the facts, presumptive knowledge of what occurred, and several opportunities to present the correct facts.”]) The Court cannot condone such tactics.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, this is the second demurrer on the same grounds. Plaintiff, in amendment failed to include any new facts but instead, included significant legal argument in the SAC. Further, given the statute of limitation and statute of fraud issues, it appears that Plaintiff is attempting to plead as vaguely as possible. “A plaintiff may not avoid a demurrer by pleading facts or positions in an amended complaint that contradict the facts pleaded in the original complaint or by suppressing facts which prove the pleaded facts false.” (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 877.) Indeed, it appears that amendment would be futile. Plaintiff does not include any additional facts in opposition that he believes corrects the deficiencies addressed in this or the prior demurrer. Instead, Plaintiff states that “this case deserves at the very least to continue with discovery to prove his claims are meritorious.” (Opp. at p. 10:6-7.) Accordingly, leave to amend is DENIED.

2. Second Cause of Action (Breach of Good Faith and Fair Dealing)

“A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself and it has been held that bad faith implies unfair dealing rather than mistaken judgment.” (Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1394.) “If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated … [T]he only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery.” (Id. at pp. 1394-1395.) To recover in tort for breach of the implied covenant, the defendant must “have acted unreasonably or without proper cause.” (Id. at p. 1395, citations and italics omitted.)

Here, Plaintiff alleges “Defendants failed to perform in accordance with the terms of the Agreement by failing to provide proper payments, royalties as well as an accounting to Plaintiff.” (SAC ¶71.) “Defendant’s failure to pay and provide the accounting unfairly frustrates Plaintiff SIR JINX’s right to receive the benefits of the mutual Agreement between the parties in this case.” (SAC ¶76.) These are the same allegations alleged to support the first cause of action for breach of contract. (See SAC ¶¶39-59.) Because Plaintiff’s allegations do not go beyond the statement of a mere contractual breach and simply relies on the same acts and seeks the same damages already claimed in the breach of contract cause of action, they may be disregarded as superfluous as no additional claim is stated. (See Careau & Co. v. Security Pacific Business Credit, Inc., supra, 222 Cal.App.3d at p. 1394.)

Further, as discussed above, Plaintiff has not sufficiently alleged the existence of a contract on which a breach of the duty of good faith and fair dealing may lie. “‘The [implied] covenant of good faith and fair dealing [is] implied by law in every contract.’ (Citation.) The covenant is read into contracts and functions ‘as a¿supplement¿to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party’s rights¿to the benefits of the contract.’” (Racine & Laramie, Ltd. v. Department of Parks & Recreation¿(1992) 11 Cal.App.4th 1026, 1031–1032.) Here, as there is no contract to support a breach of contract, there is no contract to support a breach of good faith and fair dealing. (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 327)

Accordingly, Defendants’ demurrer to the second cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) For the same reasons as addresses in the first cause of action, leave to amend is DENIED.

3. Third Cause of Action (Unjust Enrichment)

Defendants demur to the third cause of action for unjust enrichment on the grounds that Plaintiff has not alleged facts that would allow for recovery under this cause of action.

Strictly speaking, there is no cause of action for unjust enrichment; rather, unjust enrichment is a basis for obtaining restitution based on quasi-contract or imposition of a constructive trust. (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1490.) Nevertheless, one can plead and prove a cause of action based on a theory of unjust enrichment. (See, e.g., Ghirardo v. Antonioli (1996) 14 Cal.4th 39, 44.) “The elements for a claim of unjust enrichment are receipt of a benefit and unjust retention of the benefit at the expense of another. The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched.” (Lyles v. Sangadeo-Patel (2014) 225 Cal.App.4th 759, 769, quotation marks and citations omitted.)

However, a quasi-contract cannot lie where the cause of action is based upon an express contract. (Rutherford Holdings, LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 231 (Rutherford).) In Rutherford, the Court of Appeal explained:

“[A]n action based on an implied-in-fact or quasi-contract cannot lie where there exists between the parties a valid express contract covering the same subject matter.” [Citation.] However, “restitution may be awarded in lieu of breach of contract damages when the parties had an express contract, but it was procured by fraud or is unenforceable or ineffective for some reason.” [Citation.] Thus, a party to an express contract can assert a claim for restitution based on unjust enrichment by “alleg[ing in that cause of action] that the express contract is void or was rescinded.” [Citation.] A claim for restitution is permitted even if the party inconsistently pleads a breach of contract claim that alleges the existence of an enforceable agreement. [Citation.]

(Rutherford, supra, 223 Cal.App.4th at p. 231.)

Here, Plaintiff alleges: “Defendants knew and are fully aware that Plaintiff SIR JINX performed in accordance with the Agreement and trusted that Defendants would do the same.” (SAC ¶88.) “Yet, it is clear, Defendants failed to do the same. In fact, Defendants accepted, used, and continue to enjoy the benefit of their breach and refusal to properly perform and provide an accounting in this matter.” (SAC ¶89.) “Defendants’ acts, omissions, representations and breached Agreement.” (SAC ¶91.)

While the right to payment arises out of the breach of contract, Plaintiff does not allege that the agreements are void, rescinded, or other facts to indicate that the agreements are unenforceable or ineffective for some reason, even as an alternate claim to the first cause of action for breach of contract. As such, the unjust enrichment cause of action is deficient. (See Rutherford, supra, 223 Cal.App.4th at p. 231.)

Additionally, this cause of action is preempted by the Copyright Act. Plaintiff’s state law tort cause of action is preempted by Section 301 of the federal Copyright Act. Under the two-part preemption test, state law claims are preempted if: (1) the work at issue falls within the subject matter of copyright as defined in 17 U.S.C. §§ 102 and 104; and (2) the rights asserted under state law are equivalent to any of the exclusive rights within the general scope of copyright as specified by 17 U.S.C. § 106.

Here, the underlying subject matter—the “Make Way For The Motherlode” album —falls directly within the statutory subject matter of copyright. (17 U.S.C. § 102(a)(2).) Moreover, Plaintiff’s tort claims allege that Defendants improperly profited from Plaintiff’s work. Because these claims allege nothing more than unauthorized exercise of distribution rights without an “extra element" that qualitatively alters the nature of the action, they are preempted by federal copyright law (17 U.S.C. § 301). Plaintiff cannot evade federal copyright requirements by recharacterizing copyright claims as state law torts. (See Martin v. Walt Disney Internet Group (S.D. Cal., June 30, 2010, No. 09CV1601-MMA) 2010 WL 2634695, at *7 ["Although unjust enrichment claims are not categorically preempted by the Copyright Act, Plaintiff must allege a basis for the claim other than the unauthorized use of the copyrighted work, or the claim will be dismissed."]) This cause of action is therefore preempted by the Copyright Act.

Accordingly, Defendants' demurrer to the third cause of action for unjust enrichment is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) This is the second demurrer to this cause of action on identical grounds. Plaintiff failed to sufficiently amend this cause of action despite leave to do so. In short, Plaintiff has not met their burden to demonstrate this cause of action can be successfully amended as Plaintiff does not indicate there are any additional facts left unpled which would sufficiently support this cause of action. Accordingly, leave to amend is DENIED.

Accordingly, this case is DISMISSED WITH PREJUDICE, per Code of¿Civil¿Procedure, section¿581(f)(1).¿

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IT IS SO ORDERED.

Dated: July 31, 2026 ___________________________________

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.